



## AGENDA

### City Council Meeting

Council Chamber, Chowchilla City Hall  
130 S. Second Street, Chowchilla, CA 93610

**Tuesday, January 9, 2024**

Open Session: 4:00 p.m.

Agendas for all City Council meetings are posted at least 72 hours prior to the meeting in the kiosk just outside of City Hall, 130 S. Second St., Chowchilla, CA 93610.

The City of Chowchilla complies with the Americans with Disabilities Act (ADA of 1990). The Council Chambers is accessible to the physically disabled. If you need special assistance, please call (559) 665-8615, ext. 102 at least 4 days prior to a regular meeting, 1 day for a special meeting.

#### California Levine Act Statement:

California Government Code Section 84308, commonly referred to as the "Levine Act," prohibits any Chowchilla City Council Member from participating in any action related to a license, permit, contract or entitlement for use application if he or she receives any political contributions totaling more than \$250 within the previous twelve months, and for twelve months following the date of a final decision, from the business/board or applicant.

The Levine Act also requires a member of the Chowchilla City Council who has received such a contribution to disclose the contribution on the record of the proceeding.

#### CALL TO ORDER/ROLL CALL

Mayor: Kelly Smith

Mayor Pro Tem: Waseem Ahmed

Council Members: Ray Barragan, John Chavez, Jeff Troost

**City staff and contract employees present will be recorded in the minutes.**

#### CONSIDERATION OF APPROVAL OF AGENDA

Additions and/or Deletions:

#### OPEN SESSION – 4:00 PM

#### PLEDGE OF ALLEGIANCE

#### INVOCATION:

#### PRESENTATIONS/WORKSHOP - Section 1

##### 1.1 Presentation of proceeds from the Volunteer Firefighter Dinner Fundraiser, by the Chowchilla Lioness Lions Service Club

#### PUBLIC ADDRESS

This time is reserved for members of the audience to address the City Council on items of interest that are **not** on the agenda and that are within the subject matter jurisdiction of the Council.

It is recommended that speakers limit their comments to **no more than 3 minutes** each and it is requested that no comments be made during this period on items on the Agenda. Speakers are not allowed to cede their public comment time.

Members of the public who are joining the meeting via Zoom and would like to address the Council on items on the agenda should **follow the policy on page 3 of this agenda packet.**

The Council is prohibited by law from taking any action on matters discussed that are not on the agenda. No adverse conclusions should be drawn if the Council does not respond to public comment at this time.

## **COUNCIL AND STAFF VERBAL REPORTS – Section 2**

### **2.1 COUNCIL VERBAL REPORTS**

Legislative, Collaborative Agency, Ad Hoc

### **2.2 STAFF VERBAL REPORTS**

## **CONSENT CALENDAR – Section 3**

All items listed under Consent Calendar are considered to be routine and will be enacted by one motion. For discussion of any Consent Item, it will be made a part of the Regular Agenda at the request of any member of the City Council or any person in the audience.

### **3.1 Approval of the December 12, 2023 City Council Meeting Minutes (McClendon)**

### **3.2 Consideration and Acceptance of the December 2023 Check Register (Williams)**

### **3.3 Consideration and Approval of an Agreement Between the City of Chowchilla and Liebert Cassidy Whitmore for Special Legal Services Related to the Chowchilla Personnel Board (McClendon)**

## **PUBLIC HEARINGS – Section 4**

### **4.1 Consideration and Adoption of a City Council Resolution Accepting the Annual Report on Development Impact Fees for Fiscal Year 2022/23 and Making Certain Findings Related Thereto (AB1600) (Williams)**

## **DEFERRED BUSINESS – Section 5**

## **NEW BUSINESS – Section 6**

## **ANNOUNCEMENTS – Section 7**

|        |                                                     |
|--------|-----------------------------------------------------|
| JAN 15 | MARTIN LUTHER KING JR. HOLIDAY, CITY OFFICES CLOSED |
| JAN 17 | PLANNING COMMISSION MEETING, CITY HALL, 5PM         |
| JAN 23 | CITY COUNCIL MEETING, CITY HALL, 4PM                |

## **ADJOURNMENT**

I, Joann McClendon, CMC, City Clerk, do hereby declare under penalty of perjury that the foregoing agenda was posted at Chowchilla City Hall, 130 S Second Street, Chowchilla, CA and made available for public review on this 5th day of January, 2024 at or before 4:00pm.

Joann McClendon,  
CMC

Digitally signed by Joann  
McClendon, CMC  
Date: 2024.01.05 13:39:52 -08'00'

Joann McClendon, CMC, City Clerk

**Public meetings are open to the public to attend in-person. However, if you wish to attend remotely, please read the message below.**

### **Zoom login instructions**

**Use the following url to start Zoom:**

[https://us06web.zoom.us/j/84538037386?pwd=-HCzjWp4xep\\_bnzcSimFHKcvt24-Sw.gKCoCP9j4o8Cp-Yg](https://us06web.zoom.us/j/84538037386?pwd=-HCzjWp4xep_bnzcSimFHKcvt24-Sw.gKCoCP9j4o8Cp-Yg)

**Passcode: 571 688**

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**To participate by phone, dial: 1-669-444-9171**

**Webinar ID: 845 3803 7386**

**Passcode: 571 688**

Staff highly recommends that participants log into Zoom 15 minutes before the meeting begins to perform an audio check and to make sure you have optimal internet connection.

### **Options to participate / view / and listen to the meeting:**

- **If you wish to speak on an item using the Zoom platform on your computer/laptop or smart phone**, please use the “raise hand” icon and you will be unmuted when it is your turn to speak. Please provide your name when unmuted. You will be able to speak to the Council for up to 3 minutes.
- **If you are calling in to the meeting only (no camera/video) and you wish to make a comment**, press \*9 to “raise your hand” and \*6 to unmute yourself.



## MINUTES

### Item 3.1

### City Council Meeting

Council Chamber, Chowchilla City Hall  
130 S. Second Street, Chowchilla, CA 93610

**Tuesday, December 12, 2023**

Closed Session: 3:00 p.m. ~ Open Session: 4:00 p.m.

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#### **CALL TO ORDER/ROLL CALL: 3:04 p.m.**

Mayor: Ray Barragan

Mayor Pro Tem: Kelly Smith

Council Members: Waseem Ahmed, John Chavez, Jeff Troost

**City staff and contract employees present:** City Administrator Rod Pruett, City Attorney Crystal Pizano, Police Chief Jeff Palmer, Fire Chief Fred Gaumnitz, Public Works Director Jason Rogers, Community & Economic Development Director Mark Hamilton, Finance Director Kerri Williams, Deputy Director of Recreation & Community Engagement Stacy Wisener, IT System Administrator Carlos Berrocal, City Clerk Joann McClendon.

#### **CONSIDERATION OF APPROVAL OF AGENDA**

Additions and/or Deletions:

Motion by Council Member Ahmed, Seconded by Mayor Pro Tem Smith to Approve the Agenda as Presented. Motion passed unanimously by roll call vote.

#### **PUBLIC ADDRESS – CLOSED SESSION**

None.

#### **CLOSED SESSION – 3:05 PM**

##### **1. PUBLIC EMPLOYEE PERFORMANCE EVALUATION**

Pursuant to Government Code Section 54957

Title: City Administrator

#### **OPEN SESSION – 4:00 PM**

#### **PLEDGE OF ALLEGIANCE**

**INVOCATION:** Rick Welch

**CLOSED SESSION REPORT:** Nothing to report.

#### **PRESENTATIONS/WORKSHOP - Section 1**

##### **1.1 Mayor's Award Presentations**

#### **PUBLIC ADDRESS**

Dale Thomas presented the City Council with commemorative unissued United States Land and Farm stock certificates. These certificates were sold at the old Land Office Building.

**COUNCIL AND STAFF VERBAL REPORTS – Section 2****2.1 COUNCIL VERBAL REPORTS**

Legislative, Collaborative Agency, Ad Hoc

Council Member Troost attended the Citizens Advisory Committee meeting with Air Board.

Mayor Barragan attended the tree lighting ceremony and thanked Deputy Director Wisener and Public Works staff for their efforts.

Mayor Pro Tem Smith participated in the Christmas parade riding on the City's float. He also attended the Tenaya Guild fundraising dinner that raised money for Valley Children's Hospital.

Council Member Ahmed attended the Annual Employee Service Awards luncheon, Madera County Transportation Commission meeting where they discussed relocation of the Amtrak station and other projects, Chowchilla's tree lighting ceremony, and the Madera County Economic Development Commission meeting where they discussed approving budget and updated website.

**2.2 STAFF VERBAL REPORTS**

Deputy Director of Recreation and Community Engagement Wisner reported on the Christmas event/parade follow up. The following are the winners selected for their parade floats: Community Choice awards 3<sup>rd</sup> place for Ms. Placencia's class, 2<sup>nd</sup> place for the Niewkoop train, and 1<sup>st</sup> place to the Polar Express float from Reagan School. People are enjoying the Christmas music playing downtown.

IT System Administrator Berrocal reported out on projects IT is involved in.

City Administrator Pruett attended a bond meeting regarding outreach material for the CFD special election in February; following up on the wrong QR code that was on the first postcard that was mailed out for Measure N; employee luncheon was great and noticed more employees attended this year than previous ones; was on the float at the Christmas parade; had an update meeting on the Fairmead Consolidation project.

Finance Director Williams met with Tri Counties Bank for new investment options; attended a meeting with HCD to go over Calhome reuse accounts; working on end-of-year reports; municipal conference in San Diego.

Community & Economic Development Director Hamilton reported that the Housing Element was submitted on time to the state, and he went through departmental stats.

Public Works Director Rogers reported that while we had planned to have the clock installed as part of the Clean CA Project, we believe the Caltrans process to start that project has been taking too long. Currently, the project has completed a constructability review by Caltrans and has been sent to their permits department for an expedited review and permit approval. As a result, we anticipate bid advertisement by the end of this month and awarding in March 2024 with construction following after. We don't want to wait that long though for the clock. As a result, Public Works staff will be installing the clock. We are currently working with an electrician to ensure power at the site and plan on having the clock installed by staff within a month. The Alley Paving Project is moving forward and still on schedule to complete in February. He and the City Administrator met with the SWRCB for the Fairmead Sewer Consolidation Project Check-In meeting. We met their minimum requirement of 90 ROEs with 95 collected so far. The State is finishing up the technical review and estimated that a potential funding agreement within a few months. he also attended the Christmas Parade. It was a great event and his kids enjoyed being

on the float with council. He also thanked everyone that was involved in putting on a successful event

Police Chief Palmer gave departmental stat updates since the last Council meeting. He spoke about rerouting next years' parade. Updated information on the homicide arrest, recognized Lt. Denny for the investigation. Another incident occurred where a vehicle break-in led to arrests made with one juvenile who had a sawed-off shotgun. Coats and toys are still being collected by Pastor Walker.

City Administrator Pruett added the mobile food vendor ad hoc met today and the item will be brought to the Planning Commission first, then to the Council in 2024.

### **CONSENT CALENDAR – Section 3**

- 3.1 Approval of the November 28, 2023 City Council Meeting Minutes (McClendon)**
- 3.2 Consideration and Acceptance of the November 2023 Check Register (Williams)**
- 3.3 Consideration and Approval of the 2024 City Council, Committee and Commission Meeting Calendar (McClendon)**
- 3.4 Consideration and Adoption of a City Council Resolution (95-23) Authorizing Filing of the Deed of Easement for a Public Address Audio System Wire (Pruett)**
- 3.5 Consideration and Adoption of a City Council Resolution (96-23) Accepting the Valley Community Economic Resilience Fund (CERF) Agreement Letter, Authorizing the City Administrator to Sign the United Way Fresno and Madera Counties Award Letter, and Amending the Fiscal Year 2023/24 City Budget to Accept the \$10,000 from United Way of Fresno & Madera Counties to Help Support the CERF Program (Hamilton)**
- 3.6 Consideration and Adoption of a City Council Resolution (97-23) Amending the Previously Approved Amendment to the City of Chowchilla Amended Deferred Improvement Agreement Between the City of Chowchilla and Self-Help Enterprises Regarding the Development of a Pro-Rate Portion of the Remaining Subdivision Improvements for Montgomery Farms Subdivision, Phase 1, Tract 05-07 (Hamilton)**
- 3.7 Consideration and Adoption of an Employer-Employee-Relations Resolution (98-23) Containing Reasonable Rules and Regulations Governing the Administration of Employer-Employee Relations Between the City and its Recognized Employee Organizations (Lerner)**

Motion by Council Member Troost, Seconded by Mayor Pro Tem Smith to Approve the Consent Calendar as Presented. Motion passed unanimously by roll call vote.

### **PUBLIC HEARINGS – Section 4**

### **DEFERRED BUSINESS – Section 5**

### **NEW BUSINESS – Section 6**

- 6.1 Consideration and Adoption of a City Council Resolution (99-23) Awarding the Bid for Construction: Prop 68 Grant Project – Pickle Ball Courts at Edward Ray Park to JT2 Inc., DBA Todd Companies, in the Amount of \$192,750.00, Authorizing the City**

**Administrator or Designee to Execute All Related Documents and Amending the Fiscal Year 2023/24 City Budget (Rogers)**

Spoke: Rick Welch

Motion by Council Member Troost, Seconded by Mayor Pro Tem Smith to Approve City Council Resolution #99-23, Awarding the Bid for Edward Ray Park to JT2 Inc., DBA Todd Companies, in the Amount of \$192,750.00, Authorizing the City Administrator or Designee to Execute All Related Documents and Amending the Fiscal Year 2023/24 City Budget. Motion passed unanimously by roll call vote.

**6.2 Consideration and Adoption of a City Council Resolution (100-23) Authorizing the City to Enter into an Agreement for Professional Services with Madera County Transportation Commission (MCTC) for the Regional Early Action Planning (REAP) 1.0 Grants Program, and Amending the Fiscal Year 2023/24 City Budget to Allow for the Implementation of the Program (Hamilton)**

Motion by Mayor Pro Tem Smith, Seconded by Council Member Troost to Approve City Council Resolution #100-23, Authorizing the City to Enter into an Agreement for Professional Services with Madera County Transportation Commission (MCTC) for the Regional Early Action Planning (REAP) 1.0 Grants Program, and Amending the Fiscal Year 2023/24 City Budget to Allow for the Implementation of the Program. Motion passed unanimously by roll call vote.

**6.3 City Council Reorganization – Election of Mayor and Mayor Pro Tem (McClendon)**

City Clerk McClendon opened nominations for Mayor.

*Motion by Council Member Ahmed, seconded by Mayor Barragan to nominate Mayor Pro Tem Smith as Mayor. Motion passed unanimously by voice vote.*

Mayor Smith was seated and opened nominations for Mayor Pro Tem.

*Motion by Mayor Smith, Seconded by Council Member Barragan, to nominate Council Member Ahmed as Mayor Pro Tem. Motion passed unanimously by voice vote.*

**6.4 Consideration of Council Member Appointments Made by the Mayor to Collaborative Agencies (McClendon)**

No changes were made.

**ANNOUNCEMENTS – Section 7**

DEC 20 PLANNING COMMISSION MEETING, CITY HALL, 5PM – CANCELLED  
DEC 25-JAN 01 CITY OFFICES CLOSED FOR CHRISTMAS AND NEW YEAR'S DAY  
JAN 09 CITY COUNCIL MEETING, CITY HALL, 4PM

**ADJOURNMENT**

Mayor Smith Adjourned the December 12, 2023 City Council Meeting at 4:47 p.m.

ATTEST:

APPROVED:

\_\_\_\_\_  
Joann McClendon, CMC, City Clerk

\_\_\_\_\_  
Mayor Kelly Smith

# CITY OF CHOWCHILLA CALIFORNIA



## Item 3.2

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## REPORT TO THE CITY COUNCIL

Meeting of: January 9, 2024

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**AGENDA SECTION:** Consent

**SUBJECT:** Information Regarding Monthly Invoice Payments

**PREPARED BY:** Kerri Williams, Finance Director

**ATTACHMENTS:** Check list report

REVIEWED BY  
ADMINISTRATOR ☒

REVIEWED BY  
ATTORNEY ☒

REVIEWED BY  
FINANCE ☒

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### **RECOMMENDATION:**

Informational only. The invoices paid are shown in the attached listing of invoices.

### **BACKGROUND:**

Presented this evening is a list of invoices paid in December 2023.

### **REASON FOR RECOMMENDATION:**

Informational item only.

### **FISCAL IMPACT:**

Each item shown on the invoice list includes a description of that item and the amount of the invoice.

### **ALTERNATIVES:**

Not applicable.

### **ACTIONS FOLLOWING APPROVAL:**

None.



Chowchilla, CA

# Bank Transaction Report

## Transaction Detail

Issued Date Range: 12/01/2023 - 12/31/2023

Cleared Date Range: -

| Issued Date                                        | Cleared Date | Number                | Description                                               | Module           | Status      | Type  | Amount     |
|----------------------------------------------------|--------------|-----------------------|-----------------------------------------------------------|------------------|-------------|-------|------------|
| Bank Account: 200650906 - General Tricounties Bank |              |                       |                                                           |                  |             |       |            |
| 12/01/2023                                         |              | <a href="#">66398</a> | CSMFO                                                     | Accounts Payable | Outstanding | Check | -35.00     |
| 12/04/2023                                         |              | <a href="#">66399</a> | Blair Bass                                                | Accounts Payable | Outstanding | Check | -82.63     |
| 12/04/2023                                         |              | <a href="#">66400</a> | Secretary of State                                        | Accounts Payable | Outstanding | Check | -40.00     |
| 12/05/2023                                         |              | <a href="#">66401</a> | Ricardo Orantes                                           | Utility Billing  | Outstanding | Check | -67.53     |
| 12/07/2023                                         |              | <a href="#">66402</a> | Alert-O-Lite Inc.                                         | Accounts Payable | Outstanding | Check | -2,655.11  |
| 12/07/2023                                         |              | <a href="#">66403</a> | AT & T                                                    | Accounts Payable | Outstanding | Check | -95.59     |
| 12/07/2023                                         |              | <a href="#">66404</a> | AT & T CALNET                                             | Accounts Payable | Outstanding | Check | -1,693.19  |
| 12/07/2023                                         |              | <a href="#">66405</a> | AutoZone Parts, Inc                                       | Accounts Payable | Outstanding | Check | -32.60     |
| 12/07/2023                                         |              | <a href="#">66406</a> | Badger Meter Inc.                                         | Accounts Payable | Outstanding | Check | -658.27    |
| 12/07/2023                                         |              | <a href="#">66407</a> | Baudville INC                                             | Accounts Payable | Outstanding | Check | -4,121.97  |
| 12/07/2023                                         |              | <a href="#">66408</a> | BSK Associates                                            | Accounts Payable | Outstanding | Check | -692.00    |
| 12/07/2023                                         |              | <a href="#">66409</a> | California Forensic Institute Inc.                        | Accounts Payable | Outstanding | Check | -400.00    |
| 12/07/2023                                         |              | <a href="#">66410</a> | Chowchilla Do It Best                                     | Accounts Payable | Outstanding | Check | -96.11     |
| 12/07/2023                                         |              | <a href="#">66411</a> | Comcast                                                   | Accounts Payable | Outstanding | Check | -43.37     |
| 12/07/2023                                         |              | <a href="#">66412</a> | Complete Paperless Solutions, LLC                         | Accounts Payable | Outstanding | Check | -8,277.00  |
| 12/07/2023                                         |              | <a href="#">66413</a> | Department of Transportation                              | Accounts Payable | Outstanding | Check | -2,883.37  |
| 12/07/2023                                         |              | <a href="#">66414</a> | Farmers Hardware                                          | Accounts Payable | Outstanding | Check | -147.85    |
| 12/07/2023                                         |              | <a href="#">66415</a> | Grover Landscape Services Inc.                            | Accounts Payable | Outstanding | Check | -5,500.00  |
| 12/07/2023                                         |              | <a href="#">66416</a> | Ingraham Trophies                                         | Accounts Payable | Outstanding | Check | -458.09    |
| 12/07/2023                                         |              | <a href="#">66417</a> | JMP Office Technologies                                   | Accounts Payable | Outstanding | Check | -588.00    |
| 12/07/2023                                         |              | <a href="#">66418</a> | Joann McClendon                                           | Accounts Payable | Outstanding | Check | -361.42    |
| 12/07/2023                                         |              | <a href="#">66419</a> | Madera County Animal Services                             | Accounts Payable | Outstanding | Check | -345.00    |
| 12/07/2023                                         |              | <a href="#">66420</a> | Madera Tribune                                            | Accounts Payable | Outstanding | Check | -360.00    |
| 12/07/2023                                         |              | <a href="#">66421</a> | Motorola Solutions, Inc                                   | Accounts Payable | Outstanding | Check | -2,280.00  |
| 12/07/2023                                         |              | <a href="#">66422</a> | Municipal Maintenance Equipment Inc.                      | Accounts Payable | Outstanding | Check | -2,183.87  |
| 12/07/2023                                         |              | <a href="#">66423</a> | ODP Business Solutions, LLC                               | Accounts Payable | Outstanding | Check | -695.82    |
| 12/07/2023                                         |              | <a href="#">66424</a> | Point Emblems LLC                                         | Accounts Payable | Outstanding | Check | -911.31    |
| 12/07/2023                                         |              | <a href="#">66425</a> | ProClean Supply                                           | Accounts Payable | Outstanding | Check | -42.29     |
| 12/07/2023                                         |              | <a href="#">66426</a> | Prudential Overall Supply                                 | Accounts Payable | Outstanding | Check | -251.50    |
| 12/07/2023                                         |              | <a href="#">66427</a> | Purl's Sheet Metal & Air Conditioning Inc.                | Accounts Payable | Outstanding | Check | -21,985.00 |
| 12/07/2023                                         |              | <a href="#">66428</a> | Quad Knopf, Inc.                                          | Accounts Payable | Outstanding | Check | -63,073.36 |
| 12/07/2023                                         |              | <a href="#">66429</a> | Void Check                                                | Accounts Payable | Voided      | Check | 0.00       |
| 12/07/2023                                         |              | <a href="#">66430</a> | Quadient Finance USA, Inc.                                | Accounts Payable | Outstanding | Check | -4,000.00  |
| 12/07/2023                                         |              | <a href="#">66431</a> | Railworks Track Systems LLC                               | Accounts Payable | Outstanding | Check | -215.00    |
| 12/07/2023                                         |              | <a href="#">66432</a> | San Joaquin Valley Unified Air Pollution Control District | Accounts Payable | Outstanding | Check | -290.00    |
| 12/07/2023                                         |              | <a href="#">66433</a> | Self Help Enterprises                                     | Accounts Payable | Outstanding | Check | -693.00    |

# Bank Transaction Report

Issued Date Range: -

| Issued Date | Cleared Date | Number                | Description                               | Module           | Status      | Type           | Amount      |
|-------------|--------------|-----------------------|-------------------------------------------|------------------|-------------|----------------|-------------|
| 12/07/2023  |              | <a href="#">66434</a> | Silva Ford Madera                         | Accounts Payable | Outstanding | Check          | -44.51      |
| 12/07/2023  |              | <a href="#">66435</a> | Sparkletts                                | Accounts Payable | Outstanding | Check          | -199.64     |
| 12/07/2023  |              | <a href="#">66436</a> | Specialized Utility Services Program      | Accounts Payable | Outstanding | Check          | -8,300.00   |
| 12/07/2023  |              | <a href="#">66437</a> | State Water Resources Control             | Accounts Payable | Outstanding | Check          | -3,746.00   |
| 12/07/2023  |              | <a href="#">66438</a> | Sunbelt Rentals Inc.                      | Accounts Payable | Outstanding | Check          | -1,187.42   |
| 12/07/2023  |              | <a href="#">66439</a> | Terryberry Company LLC                    | Accounts Payable | Outstanding | Check          | -399.43     |
| 12/07/2023  |              | <a href="#">66440</a> | T-Mobile USA Inc                          | Accounts Payable | Outstanding | Check          | -126.60     |
| 12/07/2023  |              | <a href="#">66441</a> | Toshiba Financial Services                | Accounts Payable | Outstanding | Check          | -1,164.25   |
| 12/07/2023  |              | <a href="#">66442</a> | US BANK (CAL-CARD)                        | Accounts Payable | Outstanding | Check          | -5,435.88   |
| 12/07/2023  |              | <a href="#">66443</a> | Van De Pol Enterprises                    | Accounts Payable | Outstanding | Check          | -11,511.91  |
| 12/07/2023  |              | <a href="#">66443</a> | Van De Pol Enterprises Reversal           | Accounts Payable | Outstanding | Check Reversal | 11,511.91   |
| 12/07/2023  |              | <a href="#">66444</a> | Yamabe and Horn Engineering Inc.          | Accounts Payable | Outstanding | Check          | -847.14     |
| 12/07/2023  |              | <a href="#">66444</a> | Yamabe and Horn Engineering Inc. Reversal | Accounts Payable | Outstanding | Check Reversal | 847.14      |
| 12/07/2023  |              | <a href="#">66445</a> | Zim Industries Inc.                       | Accounts Payable | Outstanding | Check          | -368,557.25 |
| 12/07/2023  |              | <a href="#">66446</a> | Zoom Imaging Solutions, Inc.              | Accounts Payable | Outstanding | Check          | -283.98     |
| 12/11/2023  |              | <a href="#">66447</a> | Isabell Gutierrez                         | Utility Billing  | Outstanding | Check          | -135.44     |
| 12/11/2023  |              | <a href="#">66448</a> | David & Delaya Lucero                     | Utility Billing  | Outstanding | Check          | -586.65     |
| 12/12/2023  |              | <a href="#">66449</a> | AFLAC                                     | Accounts Payable | Outstanding | Check          | -897.07     |
| 12/12/2023  |              | <a href="#">66450</a> | Alert-O-Lite Inc.                         | Accounts Payable | Outstanding | Check          | -168.82     |
| 12/12/2023  |              | <a href="#">66451</a> | American Fidelity Assurance               | Accounts Payable | Outstanding | Check          | -1,302.90   |
| 12/12/2023  |              | <a href="#">66452</a> | Blue Shield of California                 | Accounts Payable | Outstanding | Check          | -69,249.82  |
| 12/12/2023  |              | <a href="#">66453</a> | BSK Associates                            | Accounts Payable | Outstanding | Check          | -98.00      |
| 12/12/2023  |              | <a href="#">66454</a> | Cal-State Tool                            | Accounts Payable | Outstanding | Check          | -639.60     |
| 12/12/2023  |              | <a href="#">66455</a> | Central Valley Veterinary Clinic          | Accounts Payable | Outstanding | Check          | -773.86     |
| 12/12/2023  |              | <a href="#">66456</a> | Chowchilla Do It Best Reversal            | Accounts Payable | Outstanding | Check Reversal | 17.36       |
| 12/12/2023  |              | <a href="#">66456</a> | Chowchilla Do It Best                     | Accounts Payable | Outstanding | Check          | -17.36      |
| 12/12/2023  |              | <a href="#">66457</a> | Creative Copy                             | Accounts Payable | Outstanding | Check          | -81.19      |
| 12/12/2023  |              | <a href="#">66458</a> | De Lage Landen Financial Services Inc.    | Accounts Payable | Outstanding | Check          | -1,598.99   |
| 12/12/2023  |              | <a href="#">66459</a> | Farmers Hardware                          | Accounts Payable | Outstanding | Check          | -3.75       |
| 12/12/2023  |              | <a href="#">66460</a> | Home Depot Credit Services                | Accounts Payable | Outstanding | Check          | -2,231.50   |
| 12/12/2023  |              | <a href="#">66461</a> | Myers Stevens & Toohey & Co Inc           | Accounts Payable | Outstanding | Check          | -526.40     |
| 12/12/2023  |              | <a href="#">66462</a> | ODP Business Solutions, LLC               | Accounts Payable | Outstanding | Check          | -244.63     |
| 12/12/2023  |              | <a href="#">66463</a> | O'Reilly Auto Parts                       | Accounts Payable | Outstanding | Check          | -367.54     |
| 12/12/2023  |              | <a href="#">66464</a> | Principal Life Insurance Company          | Accounts Payable | Outstanding | Check          | -8,587.40   |
| 12/12/2023  |              | <a href="#">66465</a> | Quad Knopf, Inc.                          | Accounts Payable | Outstanding | Check          | -664.00     |
| 12/12/2023  |              | <a href="#">66466</a> | Rose Furniture & Floor Covering           | Accounts Payable | Outstanding | Check          | -688.76     |
| 12/12/2023  |              | <a href="#">66467</a> | S & W Auto Parts Inc.                     | Accounts Payable | Outstanding | Check          | -241.57     |
| 12/12/2023  |              | <a href="#">66468</a> | Specialized Utility Services Program      | Accounts Payable | Outstanding | Check          | -25,327.50  |
| 12/12/2023  |              | <a href="#">66469</a> | State Water Resources Control             | Accounts Payable | Outstanding | Check          | -44,554.00  |
| 12/12/2023  |              | <a href="#">66470</a> | The Sand Trap Bar & Grill                 | Accounts Payable | Outstanding | Check          | -1,794.38   |
| 12/12/2023  |              | <a href="#">66471</a> | US BANK (CAL-CARD)                        | Accounts Payable | Outstanding | Check          | -9,074.69   |
| 12/12/2023  |              | <a href="#">66472</a> | Van De Pol Enterprises                    | Accounts Payable | Outstanding | Check          | -11,511.92  |
| 12/12/2023  |              | <a href="#">66473</a> | Water Technology of Fresno                | Accounts Payable | Outstanding | Check          | -750.00     |

## Bank Transaction Report

Issued Date Range: -

| Issued Date | Cleared Date | Number                | Description                                 | Module           | Status      | Type  | Amount      |
|-------------|--------------|-----------------------|---------------------------------------------|------------------|-------------|-------|-------------|
| 12/12/2023  |              | <a href="#">66474</a> | Yamabe and Horn Engineering Inc.            | Accounts Payable | Outstanding | Check | -874.14     |
| 12/12/2023  |              | <a href="#">66475</a> | Vision Service Plan - (CA)                  | Accounts Payable | Outstanding | Check | -1,795.92   |
| 12/13/2023  |              | <a href="#">66476</a> | CA State Disbursement Unit                  | Accounts Payable | Outstanding | Check | -263.53     |
| 12/13/2023  |              | <a href="#">66477</a> | Chowchilla City Police Officers Association | Accounts Payable | Outstanding | Check | -688.00     |
| 12/13/2023  |              | <a href="#">66478</a> | Void Check                                  | Accounts Payable | Voided      | Check | 0.00        |
| 12/13/2023  |              | <a href="#">66479</a> | Chowchilla Employees Assn.                  | Accounts Payable | Outstanding | Check | -180.00     |
| 12/13/2023  |              | <a href="#">66480</a> | Chowchilla Mid-Management                   | Accounts Payable | Outstanding | Check | -130.00     |
| 12/13/2023  |              | <a href="#">66481</a> | Chowchilla Office                           | Accounts Payable | Outstanding | Check | -120.00     |
| 12/13/2023  |              | <a href="#">66482</a> | Fitness Peak                                | Accounts Payable | Outstanding | Check | -87.50      |
| 12/13/2023  |              | <a href="#">66483</a> | Franchise Tax Board                         | Accounts Payable | Outstanding | Check | -483.43     |
| 12/13/2023  |              | <a href="#">66484</a> | U.S. Bank (PARS)                            | Accounts Payable | Outstanding | Check | -274.10     |
| 12/20/2023  |              | <a href="#">66485</a> | AFLAC                                       | Accounts Payable | Outstanding | Check | -897.07     |
| 12/20/2023  |              | <a href="#">66486</a> | Anderson Pump Co                            | Accounts Payable | Outstanding | Check | -4,253.20   |
| 12/20/2023  |              | <a href="#">66487</a> | AutoZone Parts, Inc                         | Accounts Payable | Outstanding | Check | -61.59      |
| 12/20/2023  |              | <a href="#">66488</a> | BSK Associates                              | Accounts Payable | Outstanding | Check | -276.00     |
| 12/20/2023  |              | <a href="#">66489</a> | Central SJVRMA                              | Accounts Payable | Outstanding | Check | -190,903.00 |
| 12/20/2023  |              | <a href="#">66490</a> | Century Communities                         | Accounts Payable | Outstanding | Check | -138,000.00 |
| 12/20/2023  |              | <a href="#">66491</a> | Chowchilla Do It Best                       | Accounts Payable | Outstanding | Check | -83.42      |
| 12/20/2023  |              | <a href="#">66492</a> | Comcast                                     | Accounts Payable | Outstanding | Check | -246.32     |
| 12/20/2023  |              | <a href="#">66493</a> | Consolidated Electrical Distributors        | Accounts Payable | Outstanding | Check | -688.81     |
| 12/20/2023  |              | <a href="#">66494</a> | Doug Thiel                                  | Accounts Payable | Outstanding | Check | -577.50     |
| 12/20/2023  |              | <a href="#">66495</a> | Farmers Hardware                            | Accounts Payable | Outstanding | Check | -503.27     |
| 12/20/2023  |              | <a href="#">66496</a> | Void Check                                  | Accounts Payable | Voided      | Check | 0.00        |
| 12/20/2023  |              | <a href="#">66497</a> | Holt of California                          | Accounts Payable | Outstanding | Check | -773.65     |
| 12/20/2023  |              | <a href="#">66498</a> | Lozano Smith, LLP                           | Accounts Payable | Outstanding | Check | -26,008.04  |
| 12/20/2023  |              | <a href="#">66499</a> | Mace Pest Control                           | Accounts Payable | Outstanding | Check | -90.00      |
| 12/20/2023  |              | <a href="#">66500</a> | Madera Tribune                              | Accounts Payable | Outstanding | Check | -5,341.25   |
| 12/20/2023  |              | <a href="#">66501</a> | Michael Baker International Inc.            | Accounts Payable | Outstanding | Check | -7,050.00   |
| 12/20/2023  |              | <a href="#">66502</a> | Mid Valley Disposal Inc.                    | Accounts Payable | Outstanding | Check | -142,926.96 |
| 12/20/2023  |              | <a href="#">66503</a> | Navia Benefit Solutions                     | Accounts Payable | Outstanding | Check | -129.60     |
| 12/20/2023  |              | <a href="#">66504</a> | NBS Government Finance Group                | Accounts Payable | Outstanding | Check | -17,912.39  |
| 12/20/2023  |              | <a href="#">66505</a> | Occupational Health Centers of California   | Accounts Payable | Outstanding | Check | -435.00     |
| 12/20/2023  |              | <a href="#">66506</a> | ODP Business Solutions, LLC                 | Accounts Payable | Outstanding | Check | -507.98     |
| 12/20/2023  |              | <a href="#">66507</a> | PACE Supply Corp                            | Accounts Payable | Outstanding | Check | -1,218.02   |
| 12/20/2023  |              | <a href="#">66508</a> | Pacific Bay Equipment Service & Sales       | Accounts Payable | Outstanding | Check | -354.17     |
| 12/20/2023  |              | <a href="#">66509</a> | PacWest Direct                              | Accounts Payable | Outstanding | Check | -4,626.60   |
| 12/20/2023  |              | <a href="#">66510</a> | PARS                                        | Accounts Payable | Outstanding | Check | -497.34     |
| 12/20/2023  |              | <a href="#">66511</a> | Precision Civil Engineering, Inc.           | Accounts Payable | Outstanding | Check | -26,731.25  |
| 12/20/2023  |              | <a href="#">66512</a> | PROtech Security & Electronics Inc.         | Accounts Payable | Outstanding | Check | -249.56     |
| 12/20/2023  |              | <a href="#">66513</a> | Prudential Overall Supply                   | Accounts Payable | Outstanding | Check | -242.30     |
| 12/20/2023  |              | <a href="#">66514</a> | Quad Knopf, Inc.                            | Accounts Payable | Outstanding | Check | -6,882.82   |
| 12/20/2023  |              | <a href="#">66515</a> | Rain for Rent                               | Accounts Payable | Outstanding | Check | -1,742.45   |
| 12/20/2023  |              | <a href="#">66516</a> | Self Help Enterprises                       | Accounts Payable | Outstanding | Check | -693.00     |

# Bank Transaction Report

Issued Date Range: -

| Issued Date                         | Cleared Date | Number                | Description                      | Module           | Status      | Type  | Amount        |
|-------------------------------------|--------------|-----------------------|----------------------------------|------------------|-------------|-------|---------------|
| 12/20/2023                          |              | <a href="#">66517</a> | State Water Resources Control    | Accounts Payable | Outstanding | Check | -80,149.78    |
| 12/20/2023                          |              | <a href="#">66518</a> | Super Circuits Inc.              | Accounts Payable | Outstanding | Check | -726.83       |
| 12/20/2023                          |              | <a href="#">66519</a> | Superior Pool Products, LLC      | Accounts Payable | Outstanding | Check | -1,722.48     |
| 12/20/2023                          |              | <a href="#">66520</a> | Terryberry Company LLC           | Accounts Payable | Outstanding | Check | -954.16       |
| 12/20/2023                          |              | <a href="#">66521</a> | The Lew Edwards Group            | Accounts Payable | Outstanding | Check | -5,500.00     |
| 12/20/2023                          |              | <a href="#">66522</a> | Turner's Towing                  | Accounts Payable | Outstanding | Check | -265.00       |
| 12/20/2023                          |              | <a href="#">66523</a> | Tyler Technologies, Inc.         | Accounts Payable | Outstanding | Check | -59,151.75    |
| 12/20/2023                          |              | <a href="#">66524</a> | US BANK (CAL-CARD)               | Accounts Payable | Outstanding | Check | -11,683.43    |
| 12/20/2023                          |              | <a href="#">66525</a> | US Post Office                   | Accounts Payable | Outstanding | Check | -2,353.88     |
| 12/20/2023                          |              | <a href="#">66526</a> | USA Bluebook                     | Accounts Payable | Outstanding | Check | -585.63       |
| 12/20/2023                          |              | <a href="#">66527</a> | Van De Pol Enterprises           | Accounts Payable | Outstanding | Check | -5,584.11     |
| 12/20/2023                          |              | <a href="#">66528</a> | Verizon Wireless                 | Accounts Payable | Outstanding | Check | -2,825.83     |
| 12/20/2023                          |              | <a href="#">66529</a> | Vulcan Materials                 | Accounts Payable | Outstanding | Check | -549.14       |
| 12/20/2023                          |              | <a href="#">66530</a> | West Coast Pet Memorial Service  | Accounts Payable | Outstanding | Check | -169.85       |
| 12/20/2023                          |              | <a href="#">66531</a> | Yamabe and Horn Engineering Inc. | Accounts Payable | Outstanding | Check | -5,357.72     |
| 12/21/2023                          |              | <a href="#">66532</a> | Hector Alfaro Garcia             | Utility Billing  | Outstanding | Check | -165.67       |
| Bank Account 200650906 Total: (138) |              |                       |                                  |                  |             |       | -1,461,345.03 |

## Bank Account: 200695379 - Payroll-Tri Counties

|                                    |            |                     |     |         |             |       |               |
|------------------------------------|------------|---------------------|-----|---------|-------------|-------|---------------|
| 12/01/2023                         |            | <a href="#">504</a> | 504 | Payroll | Outstanding | Check | -284.40       |
| 12/01/2023                         | 11/29/2023 | <a href="#">505</a> | 505 | Payroll | Cleared     | Check | 0.00          |
| 12/01/2023                         |            | <a href="#">506</a> | 506 | Payroll | Outstanding | Check | -210.61       |
| 12/01/2023                         |            | <a href="#">507</a> | 507 | Payroll | Outstanding | Check | -1,846.10     |
| 12/01/2023                         |            | <a href="#">508</a> | 508 | Payroll | Outstanding | Check | -672.56       |
| 12/01/2023                         |            | <a href="#">509</a> | 509 | Payroll | Outstanding | Check | -284.40       |
| 12/15/2023                         | 12/12/2023 | <a href="#">510</a> | 510 | Payroll | Cleared     | Check | 0.00          |
| 12/15/2023                         | 12/12/2023 | <a href="#">511</a> | 511 | Payroll | Cleared     | Check | 0.00          |
| 12/15/2023                         | 12/12/2023 | <a href="#">512</a> | 512 | Payroll | Cleared     | Check | 0.00          |
| 12/15/2023                         |            | <a href="#">513</a> | 513 | Payroll | Outstanding | Check | -1,450.29     |
| 12/15/2023                         |            | <a href="#">514</a> | 514 | Payroll | Outstanding | Check | -672.56       |
| 12/15/2023                         | 12/12/2023 | <a href="#">515</a> | 515 | Payroll | Cleared     | Check | 0.00          |
| 12/29/2023                         |            | <a href="#">516</a> | 516 | Payroll | Outstanding | Check | -1,576.05     |
| 12/29/2023                         |            | <a href="#">517</a> | 517 | Payroll | Outstanding | Check | -1,487.81     |
| 12/29/2023                         |            | <a href="#">518</a> | 518 | Payroll | Outstanding | Check | -672.56       |
| Bank Account 200695379 Total: (15) |            |                     |     |         |             |       | -9,157.34     |
| Report Total: (153)                |            |                     |     |         |             |       | -1,470,502.37 |

Summary

| Bank Account                                       | Count | Amount        |
|----------------------------------------------------|-------|---------------|
| <a href="#">200650906 General Tricounties Bank</a> | 138   | -1,461,345.03 |
| <a href="#">200695379 Payroll-Tri Counties</a>     | 15    | -9,157.34     |
| Report Total:                                      | 153   | -1,470,502.37 |

| Cash Account                                             | Count | Amount        |
|----------------------------------------------------------|-------|---------------|
| <a href="#">**No Cash Account**</a>                      | 8     | 0.00          |
| <a href="#">999 999-0100-0215 Cash In Bank</a>           | 135   | -1,461,345.03 |
| <a href="#">999 999-0100-0216 Cash In Bank (Payroll)</a> | 10    | -9,157.34     |
| Report Total:                                            | 153   | -1,470,502.37 |

| Transaction Type | Count | Amount        |
|------------------|-------|---------------|
| Check            | 150   | -1,482,878.78 |
| Check Reversal   | 3     | 12,376.41     |
| Report Total:    | 153   | -1,470,502.37 |

# CITY OF CHOWCHILLA CALIFORNIA



## Item 3.3

[CLICK HERE  
TO RETURN TO  
THE AGENDA](#)

## REPORT TO THE CITY COUNCIL

Meeting of: January 9, 2024

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**AGENDA SECTION:** Consent

**SUBJECT:** Consideration and Approval of an Agreement Between the City of Chowchilla and Liebert Cassidy Whitmore for Special Legal Services Related to the Chowchilla Personnel Board

**PREPARED BY:** Joann McClendon, City Clerk

**ATTACHMENTS:** Agreement

REVIEWED BY  
ADMINISTRATOR ☒

REVIEWED BY  
ATTORNEY ☒

REVIEWED BY  
FINANCE ☒

---

### **RECOMMENDATION:**

That the City Council approve the agreement for special services with Liebert Cassidy Whitmore.

### **BACKGROUND:**

The Personnel Board consists of all members of the City Council (Chowchilla Municipal Code Section 2.42.030). The Personnel Board was created to hear appeals submitted by any person in the competitive service relative to any disciplinary action, dismissal, demotion, charge of discrimination, or alleged violation, and to certify its findings and recommendations as provided in the personnel system rules (CMC Section 2.42.040).

### **REASON FOR RECOMMENDATION:**

The Personnel Board is a separate entity, apart from the City Council; although the Board consists of City Council Members. In order to separate the two entities, and remove any potential bias or appearance of bias, it is recommended that the City contract special legal services for the Personnel Board with a firm other than the City's own attorney.

### **FISCAL IMPACT:**

The hourly rates are listed under "Schedule I – Fees & Costs" within the agreement and will be paid from the General Fund. Total costs are dependent on how much time the City utilizes Liebert Cassidy Whitmore's legal services.

### **ACTIONS FOLLOWING APPROVAL:**

Obtain signatures for the agreement.

## **AGREEMENT FOR SPECIAL SERVICES**

This Agreement is entered into between the law firm of LIEBERT CASSIDY WHITMORE, A Professional Corporation (“Attorney”), and the CITY OF CHOWCHILLA, A Municipal Corporation (“City”).

### **1. Conditions**

This Agreement will not take effect, and Attorney will have no obligation to provide services, until City returns a properly signed and executed copy of this Agreement.

### **2. Attorney’s Services**

Attorney agrees to provide City with consulting, representational and legal services pertaining to employment relations matters, including representation in negotiations and in administrative and court proceedings, as requested by City or otherwise required by law.

### **3. Fees, Costs, Expenses**

City agrees to pay Attorney the sums billed monthly for time spent by Attorney in providing the services, including reasonable travel time.

The current range of hourly rates for Attorney time is from Two Hundred Sixty to Four Hundred Thirty-Five Dollars (\$260.00 - \$435.00). See Schedule I for a full Fee Schedule. Attorney reviews its hourly rates on an annual basis and, if appropriate, adjusts them effective July 1. Attorney will provide the City with written notification of any adjustment in the range of rates. Attorney bills its time in minimum units of one-tenth of an hour.

#### For Litigation Matters

See Schedule II attached for a description of Attorney's Litigation and E-Discovery Management.

#### Other Expenses

City agrees to reimburse Attorney for necessary costs and expenses incurred by Attorney on behalf of City. Attorney bills photocopying charges at Fifteen Cents (\$0.15) per page. See Schedule I attached.

Payment by City against monthly billings is due upon receipt of statements, and is considered delinquent if payment is not received within thirty (30) days of the date of the invoice.

#### **4. Professional Liability Insurance**

The California Business & Professions Code requires us to inform you whether we maintain errors and omissions insurance coverage applicable to the services to be rendered to you. We hereby confirm that the firm does maintain such insurance coverage.

#### **5. Arbitration of Professional Liability or Other Claims**

Disputes. If a dispute between City and Attorney arises over fees charged for services, the controversy will be submitted to binding arbitration in accordance with the rules of the California State Bar Fee Arbitration Program, set forth in California Business and Professions Code, sections 6200 through 6206. The arbitrator or arbitration panel shall have the authority to award to the prevailing party attorneys' fees, costs and interest incurred. Any arbitration award may be served by mail upon either side and personal service shall not be required.

If a dispute arises between City and Attorney over any other aspect of the attorney-client relationship, including, without limitation, a claim for breach of professional duty, that dispute will also be resolved by arbitration. It is understood that any dispute as to any alleged breach of professional duty (that is, as to whether any legal services rendered under this agreement were allegedly unnecessary, unauthorized, omitted entirely, or were improperly, negligently or incompetently rendered) will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. **Both parties to this agreement, by entering into it, are giving up their constitutional right to have any such dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.** Each party is to bear its own attorney's fees and costs.

**6. File Retention**

After our services conclude, Attorney will, upon City's request, deliver the file for the matter to City, along with any funds or property of City's in our possession. If City requests the file for the matter, Attorney will retain a copy of the file at the City's expense. If City does not request the file for this matter, we will retain it for a period of seven (7) years after this matter is closed. If City does not request delivery of the file for this matter before the end of the seven (7) year period, we will have no further obligation to retain the file and may, at our discretion, destroy it without further notice to City. At any point during the seven (7) year period, City may request delivery of the file.

7. **Assignment**

This Agreement is not assignable without the written consent of City.

8. **Independent Contractor**

It is understood and agreed that Attorney, while engaged in performing the terms of this Agreement, is an independent contractor and not an employee of City.

9. **Authority**

The signators to this Agreement represent that they hold the positions set forth below their signatures, and that they are authorized to execute this Agreement on behalf of their respective parties and to bind their respective parties hereto.

10. **Term**

This Agreement is effective January 3, 2024, ongoing and may be modified by mutual agreement of the parties. This agreement shall be terminable by either party upon thirty (30) days written notice.

LIEBERT CASSIDY WHITMORE,  
A Professional Corporation

CITY OF CHOWCHILLA  
A Municipal Corporation

By: \_\_\_\_\_

By: \_\_\_\_\_

Name: \_\_\_\_\_

Name: Rod Pruett

Title: \_\_\_\_\_

Title: City Administrator

Date: \_\_\_\_\_

Date: \_\_\_\_\_

## SCHEDULE I – FEES & COSTS

### 1. Hourly Rates (As of Agreement Effective Date)

|                               |                     |
|-------------------------------|---------------------|
| Partners                      | \$435.00            |
| Senior Counsel                | \$365.00            |
| Associates                    | \$260.00 - \$345.00 |
| Labor Relations/HR Consultant | \$280.00            |
| Paralegals                    | \$145.00            |
| E- Discovery Specialists      | \$145.00            |
| Law Clerks                    | \$145.00 - \$185.00 |

### 2. COSTS

|                |                 |
|----------------|-----------------|
| 1. Photocopies | \$0.15 per copy |
|----------------|-----------------|

## SCHEDULE II

### LCW LITIGATION and E-DISCOVERY MANAGEMENT

LCW is committed to using state-of-the-art technology to efficiently manage and harness electronically-stored information (“ESI”) in compliance with Federal and State law requirements. LCW partners with an outside managed services provider to provide Relativity, the industry leading e-discovery software, for this purpose. The cost for each matter will depend on the volume and format of the data. For non-complex data up to 50 gigabytes, LCW charges a monthly fee of \$450 on all active litigation matters for data management, including data validation and security, ingestion, de-duplication, culling and streamlining, and creation of Relativity fields for expedited review. For data of 50 gigabytes and over and for complex data requiring specialized services (e.g., payroll data, spreadsheets with underlying formulas, video, advanced searches, etc.), additional charges are incurred and are passed through to the client. For such charges, we will provide an itemized bill from our managed services provider and obtain client approval prior to incurring the charges.

#### Litigation Case Staffing

LCW has organized its litigation practice to meet the challenges of today’s complex litigation cases. We employ a dedicated Litigation Manager – a non-billing attorney litigator – whose responsibility is to monitor all litigation cases to ensure quality, efficiency, and adherence to client and firm litigation guidelines. Each litigation case is staffed with a Partner, an Associate (or Associates, as required and as approved by the Client), a Paralegal and an E-Discovery Specialist. Our E-Discovery Specialists have extensive experience in the efficient management of electronic data through every stage of the e-discovery life cycle, and they strategize with attorneys and clients on effective ESI protocols. This makes the document review process more efficient and enables our attorneys to target the most relevant data to meet litigation objectives. Working with our e-discovery managed services provider, we are able to provide state-of-the-art data processing and hosting services at below-market rates.

# CITY OF CHOWCHILLA CALIFORNIA



## Item 4.1

[CLICK HERE  
TO RETURN TO  
THE AGENDA](#)

## REPORT TO THE CITY COUNCIL

Meeting of: January 9, 2024

**AGENDA SECTION:** Public Hearing

**SUBJECT:** A City Council Resolution Accepting the Annual Report on Development Impact Fees for Fiscal Year 2022/23 and Making Certain Findings Related Thereto (AB1600)

**PREPARED BY:** Kerri Williams, Finance Director

**ATTACHMENTS:** Resolution, Annual Development Impact Fee Report

REVIEWED BY  
ADMINISTRATOR ☒

REVIEWED BY  
ATTORNEY ☒

REVIEWED BY  
FINANCE ☒

### **RECOMMENDATION:**

Staff recommends the City Council approve resolution accepting Annual Report of Development Impact Fees.

### **BACKGROUND:**

State of California Assembly Bill 1600 (AB 1600) – the Mitigation Fee Act (Gov. Code, Sections 66000 *et seq.*) sets forth the standards against which monetary exactions on development projects are measured.

The City Council adopted and updated various development impact fees applicable to new development within the City. The purpose of development impact fees is to finance the design, construction and acquisition of facilities and equipment necessary to accommodate future development within the City.

Development impact fees that are collected are segregated and placed in special funds or accounts, which earn interest. Those funds are held for the facilities for which the fees are collected, in accordance with Government Code Section 66006.

As of June 30, 2023, the City had 9 separate and distinct fees that are collected, pursuant to AB 1600. Please refer to the attached Annual Development Impact Fee Report for summary and detail information.

### **REASON FOR RECOMMENDATION:**

Required per Assembly Bill 1600 and the Mitigation Fee Act (Gov. Code, Sections 66000, *et seq.*).

### **FISCAL IMPACT:**

Tracking of the fund activities, summarizing the activity for this report and preparation of the report requires resources of the Finance Department. No funds were expended on outside sources to comply with this unfunded State mandate. This is a required reporting and compliance report per the California Government Code. Failure to report on activity and account balances per the applicable regulations could allow a successful challenge to the collection of the related fees in the future or repayment of previously collected fees.

**ALTERNATIVES:**

Failure to approve could leave City at risk of non-compliance to AB1600 requirements and could result in the reimbursement of funds unspent after 5 years.

**ACTIONS FOLLOWING APPROVAL:**

Will post on the City's website as it is a state requirement.

**COUNCIL RESOLUTION # -24**

**A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CHOWCHILLA, CALIFORNIA  
REVIEWING CERTAIN IMPACT FEE ACCOUNTS, ADOPTING THE REPORT AND MAKING  
CERTAIN FINDINGS RELATED THERETO**

**WHEREAS**, California Government Code 66006 requires an annual public review of all impact fee accounts maintained by a public agency such as the City of Chowchilla; and

**WHEREAS**, California Government Code 66001 requires certain findings related to all impact fees on hand longer than five years; and

**WHEREAS**, the Finance Department has prepared a report attached hereto in compliance with the requirements of such State Statutes (the "Report"); and

**WHEREAS**, the Report contains all of the information required by law; and

**WHEREAS**, a copy of said report has been on file at least fifteen days prior to the date of the Council Meeting at which the Report is being reviewed; and

**WHEREAS**, the Signalization, Waste Water and Water, Streets & Roads, Storm Drain, Police and Fire Impact Fee programs all have a portion of their balance that has been on deposit for at least five years.

**NOW, THEREFORE, BE IT RESOLVED** that the City Council of the City of Chowchilla hereby finds and determines the following:

1. All of the above recitals are true and correct.
2. The entire remaining balance on hand for each of the development impact fees that have a balance that is at least 5 years old shall be held until such time that it is deemed appropriate to expend the funds available on one or more projects for which these monies were originally collected.
3. A copy of the approved resolution shall be forwarded to the Finance Director for use in overseeing these monies.
4. The Report is adopted and approved.
5. The findings listed in the Report are adopted by the Council and are consistent with the requirements of Section 66001 and Section 66006.
6. This resolution is effective immediately upon adoption.

**PASSED AND ADOPTED** by City Council of the City of Chowchilla this 9th day of January, 2024 by the following votes to wit:

**AYES:**

**NOES:**

**ABSENT:**

**ABSTAIN:**

**APPROVED:**

\_\_\_\_\_  
Kelly Smith, Mayor

**ATTEST:**

\_\_\_\_\_  
Joann McClendon, CMC  
City Clerk

FISCAL YEAR  
ENDED

**JUNE 30, 2023**

# DEVELOPMENTAL IMPACT FEE REPORT



CITY OF  
**CHOWCHILLA**

CALIFORNIA

Kerri Williams  
Finance Director

# List of Principal Officials

## City Council

|                    |                |
|--------------------|----------------|
| Ray Barragan.....  | Mayor          |
| Kelly Smith .....  | Mayor Pro Tem  |
| John Chavez.....   | Council Member |
| Waseem Ahmed ..... | Council Member |
| Jeff Troost .....  | Council Member |

## Executive Team

|                      |                                 |
|----------------------|---------------------------------|
| Rod Pruett.....      | City Administrator              |
| Jeffrey Palmer.....  | Chief of Police                 |
| Kerri Williams.....  | Finance Director                |
| Joann McClendon..... | City Clerk                      |
| Mary Lerner.....     | City Attorney, Lozano Smith     |
| Fred Gaumnitz.....   | Fire Chief and Code Enforcement |
| Jason Rogers.....    | Public Works Director           |
| Mark Hamilton.....   | Community Development Director  |

# Development Impact Fee Report

## **Legal Requirements**

State law (California Government Code Section 66006) requires each local agency that imposes AB 1600 development impact fees to prepare an annual report providing specific information about those fees. Within the AB 1600 legal requirements, it stipulates that fees imposed on new development have the proper nexus to any project on which they are imposed. In addition, AB 1600 imposes certain accounting and reporting requirements with respect to the fees collected. The fees, for accounting purposes, must be segregated from the general funds of the City and from other funds or accounts containing fees collected for other improvements. Interest on each development fee fund or account must be credited to that fund or account and used only for the purposes for which the fees were collected.

Current California Government Code Section 66006 (b) requires that for each separate fund the local agency shall, within 180 days after the last day of each fiscal year, make available to the public the information shown below for the most recent fiscal year.

- A brief description of the type of fee in the account or fund.
- The amount of the fee.
- The beginning and ending balance of the account or fund.
- The amount of the fees collected and interest earned.
- Identify each public improvement on which fees were expended and the amount of expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement.
- A description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid and the rate of interest that the account or fund will receive on the loan.
- The amount of refunds made due to sufficient funds being collected to complete financing on incomplete public improvements, and the amount of reallocation of funds made due to administrative costs of refunding unexpended revenues exceeding the amount to be refunded.

California Government Code Section 66001 (d) requires the local agency make all of the following findings every fifth year with respect to that portion of the account remaining unexpended, whether committed or uncommitted

- Identify the purpose of the fee.
- Demonstrate a reasonable relationship between the fee and purpose for which it is charged.
- Identify all sources and amounts of funding anticipated to complete financing in incomplete improvements.
- Designate the approximate dates on which the funding is expected to be deposited into the appropriate account or fund.
- In any action imposing a fee as a condition of approval of a development project by a local agency, the local agency shall determine how there is a reasonable relationship between the amount of the fee and the cost of the public facility or portion of the public facility attributable to the development on which the fee is imposed.

### **Description of Development Impact Fee Funds**

- Fire Impact Fee Fund - To provide for the expansion, design and construction of fire facilities and equipment to address increased demands of the fire department caused by new development.
- Public Building Impact Fee Fund - To provide for the expansion, design and construction of public facilities to address increased demands of the city affected by new development
- Park Development Impact Fee Fund - To provide for the acquisition and development of parks and recreation facilities impacted by new development in the designated areas.
- Police Impact Fee Fund – To provide for the Police Department building expansion and equipment to address increased demands on the police caused by new development.
- Waste Water Impact Fee Fund - To provide for the expansion of collection and treatment capacities in the wastewater utility due to increased sewage caused by new development.
- Signalization Impact Fee Fund - Traffic facilities are to provide for the impacts of increased traffic caused by new development.
- Storm Drain Impact Fee Fund - Installation of public storm drainage and flood control facilities within the city boundaries to service needs of future development.
- Streets and Roads Impact Fee Fund - To provide for traffic improvements necessary to accommodate the increase in traffic generated by new development.
- Water Systems Impact Fee Fund - To provide for the expansion of production, storage, transmission, treatment and distribution facilities to service new development.

# Financial Summary Report

## *Statement of Revenues, Expenditures and Changes in Fund Balance*

### *Fiscal Year Ending June 30, 2023*

| Description                                      | Fire             | Public Bldg.     | Park           | Police         | Waste-Water      | Signal-ization | Storm Drain      | Streets and Roads | Water          |
|--------------------------------------------------|------------------|------------------|----------------|----------------|------------------|----------------|------------------|-------------------|----------------|
| <b><u>Revenues</u></b>                           |                  |                  |                |                |                  |                |                  |                   |                |
| Fees                                             | \$ 236,569       | \$ 129,879       | \$ 20,632      | \$ 141,472     | \$ 309,682       | \$ 47,216      | \$ 5,326         | \$ 666,222        | \$ 130,913     |
| Investment Income                                | 5,704            | 262              | 1,890          | 4,885          | 13,763           | 5,602          | 10,166           | 21,041            | 4,326          |
| Other                                            |                  |                  |                |                |                  |                |                  |                   |                |
| <b>Total Revenues</b>                            | <b>242,272</b>   | <b>130,141</b>   | <b>22,522</b>  | <b>146,357</b> | <b>323,445</b>   | <b>52,818</b>  | <b>15,492</b>    | <b>687,263</b>    | <b>135,239</b> |
| <b><u>Expenditures</u></b>                       |                  |                  |                |                |                  |                |                  |                   |                |
| Expenditures                                     | 113,325          | 62,086           | 584            | 62,433         | 138,190          | 21,646         | -                | 315,869           | 49,507         |
| Other                                            | 488,000          |                  |                |                |                  |                | 800,000          |                   |                |
| <b>Total Expenditures</b>                        | <b>601,325</b>   | <b>62,086</b>    | <b>584</b>     | <b>62,433</b>  | <b>138,190</b>   | <b>21,646</b>  | <b>800,000</b>   | <b>315,869</b>    | <b>49,507</b>  |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>(359,053)</b> | <b>68,055</b>    | <b>21,938</b>  | <b>83,924</b>  | <b>185,255</b>   | <b>31,171</b>  | <b>(784,508)</b> | <b>371,394</b>    | <b>85,733</b>  |
| Beginning Fund Balance as of 7/1/22              | <u>404,539</u>   | <u>(477,910)</u> | <u>145,676</u> | <u>363,822</u> | <u>1,038,859</u> | <u>435,949</u> | <u>802,673</u>   | <u>1,559,696</u>  | <u>322,839</u> |
| Adjustment to Fund Balance *                     |                  |                  |                |                |                  |                |                  |                   |                |
| Ending Fund Balance as of 6/30/2023              | <u>45,486</u>    | <u>(409,856)</u> | <u>167,613</u> | <u>447,746</u> | <u>1,224,114</u> | <u>467,121</u> | <u>18,165</u>    | <u>1,931,090</u>  | <u>408,572</u> |

\*Adjustments to Fund Balance: Rounding, Journals posted after previous reporting to record revenue against deficit

## Fire Impact Development Fee Fund

**Purpose:** Purpose of this fee is to finance expansion, design and construction of fire facilities and purchase equipment to address increased demands of the fire department generated by new development.

### Fee Schedule

| Description                               | Zone 1     | Zone 1A   | Zone 1B   | Zone 2      | Zone 2A   | Zone 2B     | Zone 3      | Zone 3A     | Zone 4      |
|-------------------------------------------|------------|-----------|-----------|-------------|-----------|-------------|-------------|-------------|-------------|
| Residential (Dollars Per Equivalent Unit) | \$1,886.54 |           |           | \$ 1,886.54 | \$ 287.71 | \$ 1,886.54 | \$ 1,886.54 | \$ 1,886.54 | \$ 1,886.54 |
| Commercial (Dollars Per Square ft.)       | \$ 0.80    |           |           | \$ 0.79     |           | \$ 0.79     | \$ 0.79     | \$ 0.79     | \$ 0.79     |
| Industrial (Dollars Per Square ft.)       | \$ 0.45    |           |           | \$ 0.45     |           | \$ 0.45     | \$ 0.43     | \$ 0.43     | \$ 0.43     |
| All Units (Dollars Per Equivalent Unit)   |            | \$ 282.58 | \$ 288.31 |             |           |             |             |             |             |

**Fire Impact Development Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                                   | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|---------------------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                                        |                          |                          |                          |                          |                          |
| Fees                                                          | \$ 2,890                 | 2,280                    | \$ 15,820                | \$ 147,725               | \$ 236,569               |
| Investment Income                                             | 5,024                    | 4,976                    | 1,391                    | 1,190                    | 5,704                    |
| Other*                                                        |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                                         | <b>7,914</b>             | <b>7,256</b>             | <b>17,211</b>            | <b>148,915</b>           | <b>242,272</b>           |
| <b><u>Expenditures</u></b>                                    |                          |                          |                          |                          |                          |
| Expenditures (1)                                              | \$ -                     | \$ -                     | \$ -                     | \$ 60,397                | \$ 113,325               |
| Transfer-Out Fire Expansion                                   | -                        | -                        | -                        | 44,167                   | 488,000                  |
| <b>Total Expenditures</b>                                     | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>104,564</b>           | <b>601,325</b>           |
| <b><u>Revenues Over/(Under) Expenditures</u></b>              | <b>7,914</b>             | <b>7,256</b>             | <b>17,211</b>            | <b>44,351</b>            | <b>(359,053)</b>         |
| Beginning Fund Balance                                        | 327,807                  | 335,720                  | 342,977                  | 360,188                  | 404,539                  |
| Adjustment to Beginning Balance                               |                          |                          |                          |                          |                          |
| Ending Fund Balance                                           | 335,720                  | 342,977                  | 360,188                  | 404,539                  | 45,486                   |
| <b>Five-Year Revenue Test Using First In First Out Method</b> |                          |                          |                          |                          |                          |
| Available Revenue Current Year                                | 7,914                    | 7,256                    | 17,211                   | 148,915                  | 45,486                   |
| Available Revenue Prior Year (2-yr Old Funds)                 | 13,440                   | 7,914                    | 7,256                    | 17,211                   | -                        |
| Available Revenue Prior Year (3-yr Old Funds)                 | 5,954                    | 13,440                   | 7,914                    | 7,256                    | -                        |
| Available Revenue Prior Year (4-yr Old Funds)                 | 22,938                   | 5,954                    | 13,440                   | 7,914                    | -                        |
| Available Revenue Prior Year (5-yr Old Funds)                 | 3,382                    | 22,938                   | 5,954                    | 13,440                   | -                        |
| Available Revenue Greater than 5 Prior Fiscal Years           | 282,093                  | 285,475                  | 308,413                  | 209,803                  | -                        |
|                                                               | 335,720                  | 342,977                  | 360,188                  | 404,539                  | 45,486                   |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

## General Facilities Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for the expansion, design and construction of public facilities to address increased demands of the city generated by new development.

### Fee Schedule

| Description                               | Zone 1     | Zone 1A | Zone 1B   | Zone 2  | Zone 2A   | Zone 2B    | Zone 3     | Zone 3A    | Zone 4     |
|-------------------------------------------|------------|---------|-----------|---------|-----------|------------|------------|------------|------------|
| Residential (Dollars Per Equivalent Unit) | \$1,035.64 |         |           | 1035.64 | \$ 215.77 | \$1,035.64 | \$1,035.64 | \$1,035.64 | \$1,035.64 |
| Commercial (Dollars Per Square ft.)       | 0.45       |         |           | 0.43    |           | \$0.43     | \$0.43     | \$0.43     | \$0.43     |
| Industrial (Dollars Per Square ft.)       | 0.25       |         |           | 0.25    |           | \$0.25     | \$0.25     | \$0.25     | \$0.25     |
| All Units (Dollars Per Equivalent Unit)   |            | 215.43  | \$ 215.42 |         |           |            |            |            |            |

**General Facilities Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                                   | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|---------------------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                                        |                          |                          |                          |                          |                          |
| Fees                                                          | \$ 1,866                 | \$ 1,574                 | \$ 8,753                 | \$ 80,473                | \$ 129,879               |
| Investment Income                                             | 43                       | 8                        | 10                       | 90                       | 262                      |
| <b>Total Revenues</b>                                         | <b>1,908</b>             | <b>1,582</b>             | <b>8,763</b>             | <b>80,562</b>            | <b>130,141</b>           |
| <b><u>Expenditures</u></b>                                    |                          |                          |                          |                          |                          |
| Expenditures (1)                                              |                          |                          |                          | 33,920                   | 62,086                   |
| <b>Total Expenditures</b>                                     | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>33,920</b>            | <b>62,086</b>            |
| <b><u>Revenues Over/(Under) Expenditures</u></b>              | <b>1,908</b>             | <b>1,582</b>             | <b>8,763</b>             | <b>46,642</b>            | <b>68,055</b>            |
| Other*                                                        |                          |                          |                          |                          |                          |
| Beginning Fund Balance                                        | (536,804)                | (534,896)                | (533,314)                | (524,552)                | (477,910)                |
| Ending Fund Balance                                           | (534,896)                | (533,314)                | (524,552)                | (477,910)                | (409,856)                |
| <b>Five-Year Revenue Test Using First In First Out Method</b> |                          |                          |                          |                          |                          |
| Available Revenue Current Year                                | 1,908                    | 1,582                    | 8,763                    | 80,562                   | 130,141                  |
| Available Revenue Prior Year (2-yr Old Funds)                 | 5,755                    | 1,908                    | 1,582                    | 8,763                    | 80,562                   |
| Available Revenue Prior Year (3-yr Old Funds)                 | 2,171                    | 5,755                    | 1,908                    | 1,582                    | 8,763                    |
| Available Revenue Prior Year (4-yr Old Funds)                 | 12,712                   | 2,171                    | 5,755                    | 1,908                    | 1,582                    |
| Available Revenue Prior Year (5-yr Old Funds)                 | 1,222                    | 12,712                   | 2,171                    | 5,755                    | 1,908                    |
| Available Revenue Greater than 5 Prior Fiscal Years           | (558,664)                | (557,442)                | (544,730)                | (576,479)                | (632,811)                |
|                                                               | (534,896)                | (533,314)                | (524,552)                | (477,910)                | (409,856)                |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

Parks Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for the acquisition and development of parks and recreation facilities impacted by new development in the designated areas.

Fee Schedule

| Description                               | Zone 1     | Zone 1A   | Zone 1B     | Zone 2      | Zone 2A     | Zone 2B    | Zone 3     | Zone 3A    | Zone 4     |
|-------------------------------------------|------------|-----------|-------------|-------------|-------------|------------|------------|------------|------------|
| Residential (Dollars Per Equivalent Unit) | \$2,452.49 |           |             | \$ 2,452.49 | \$ 1,259.41 | \$2,452.49 | \$2,452.49 | \$2,962.04 | \$2,452.49 |
| Parks and Recreation                      |            | \$ 282.58 | \$ 1,258.92 |             |             |            |            |            |            |
| Blocks 8 & 10                             |            | 1,258.92  |             |             |             |            |            |            |            |

**Parks Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                                   | Fiscal Year<br>2017/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|---------------------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                                        |                          |                          |                          |                          |                          |
| Fees                                                          | \$ 7,725                 | \$ 7,161                 |                          | \$ 201,045               | \$ 20,632                |
| Investment Income                                             | 484                      | 404                      | 129                      | 308                      | 1,890                    |
| Other*                                                        |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                                         | <b>8,209</b>             | <b>7,565</b>             | <b>129</b>               | <b>201,353</b>           | <b>22,522</b>            |
| <b><u>Expenditures</u></b>                                    |                          |                          |                          |                          |                          |
| Expenditures (1)                                              |                          |                          |                          | 87,971                   | 584                      |
| <b>Total Expenditures</b>                                     | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>87,971</b>            | <b>584</b>               |
| <b><u>Revenues Over/(Under) Expenditures</u></b>              | <b>8,209</b>             | <b>7,565</b>             | <b>129</b>               | <b>113,382</b>           | <b>21,938</b>            |
| Beginning Fund Balance                                        | 16,391                   | 24,600                   | 32,165                   | 32,294                   | 145,676                  |
| Ending Fund Balance                                           | 24,600                   | 32,165                   | 32,294                   | 145,676                  | 167,613                  |
| <b>Five-Year Revenue Test Using First In First Out Method</b> |                          |                          |                          |                          |                          |
| Available Revenue Current Year (2)                            | 8,209                    | 7,565                    | 129                      | 145,676                  | 22,522                   |
| Available Revenue Prior Year (2-yr Old Funds)                 | 990                      | 8,209                    | 7,565                    |                          | 145,091                  |
| Available Revenue Prior Year (3-yr Old Funds)                 | 6,642                    | 990                      | 8,209                    |                          |                          |
| Available Revenue Prior Year (4-yr Old Funds)                 | 8,759                    | 6,642                    | 990                      |                          |                          |
| Available Revenue Prior Year (5-yr Old Funds)                 |                          | 8,759                    | 6,642                    |                          |                          |
| Available Revenue Greater than 5 Prior Fiscal Years           |                          |                          | 8,759                    |                          |                          |
|                                                               | 24,600                   | 32,165                   | 32,294                   | 145,676                  | 167,613                  |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

Public Safety Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for the expansion of police facilities, purchase and purchase of equipment to address increased demands on the police impacted by new development.

Fee Schedule

| Description                               | Zone 1      | Zone 1A   | Zone 1B   | Zone 2      | Zone 2A   | Zone 2B     | Zone 3      | Zone 3A     | Zone 4      |
|-------------------------------------------|-------------|-----------|-----------|-------------|-----------|-------------|-------------|-------------|-------------|
| Residential (Dollars Per Equivalent Unit) | \$ 1,018.98 |           |           | \$ 1,018.72 | \$ 964.08 | \$ 1,018.72 | \$ 1,018.72 | \$ 1,018.72 | \$ 1,018.72 |
| Commercial (Dollars Per Square ft.)       | 0.43        |           |           | 0.43        |           | 0.43        | 0.43        | 0.43        | 0.43        |
| Industrial (Dollars Per Square ft.)       | 0.25        |           |           | 0.25        |           | 0.25        | 0.25        | 0.25        | 0.25        |
| All Units (Dollars Per Equivalent Unit)   |             | \$ 964.08 | \$ 964.08 |             |           |             |             |             |             |

**Public Safety Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |                          |
| Fees                                             | \$ 5,157                 | \$ 3,681                 | \$ 8,637                 | \$ 108,708               | \$ 141,472               |
| Investment Income                                | 4,241                    | 4,128                    | 1,152                    | 957                      | 4,885                    |
| Other*                                           |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>9,398</b>             | <b>7,809</b>             | <b>9,789</b>             | <b>109,665</b>           | <b>146,357</b>           |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |                          |
| Expenditures (1)                                 |                          |                          |                          | 41,044                   | 62,433                   |
| <b>Total Expenditures</b>                        | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>41,044</b>            | <b>62,433</b>            |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>9,398</b>             | <b>7,809</b>             | <b>9,789</b>             | <b>68,620</b>            | <b>83,924</b>            |
| Beginning Fund Balance                           | 268,206                  | 277,604                  | 285,413                  | 295,202                  | 363,822                  |
| Ending Fund Balance                              | 277,604                  | 285,413                  | 295,202                  | 363,822                  | 447,746                  |

**Five-Year Revenue Test Using First In First Out Method**

|                                                     |         |         |         |         |         |
|-----------------------------------------------------|---------|---------|---------|---------|---------|
| Available Revenue Current Year                      | 9,398   | 7,809   | 9,789   | 109,665 | 146,357 |
| Available Revenue Prior Year (2-yr Old Funds)       | 9,725   | 9,398   | 7,809   | 9,789   | 109,665 |
| Available Revenue Prior Year (3-yr Old Funds)       | 7,790   | 9,725   | 9,398   | 7,809   | 9,789   |
| Available Revenue Prior Year (4-yr Old Funds)       | 10,774  | 7,790   | 9,725   | 9,398   | 7,809   |
| Available Revenue Prior Year (5-yr Old Funds)       | 4,332   | 10,774  | 7,790   | 9,725   | 9,398   |
| Available Revenue Greater than 5 Prior Fiscal Years | 235,585 | 239,917 | 250,691 | 217,437 | 164,728 |
|                                                     | 277,604 | 285,413 | 295,202 | 363,822 | 447,746 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

## Waste-Water Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for the expansion of collection and treatment capacities in the wastewater utility due to increased sewage impacted by new development.

### Fee Schedule

| Description                               | Zone 1     | Zone 1A     | Zone 1B     | Zone 2      | Zone 2A    | Zone 2B    | Zone 3     | Zone 3A    | Zone 4     |
|-------------------------------------------|------------|-------------|-------------|-------------|------------|------------|------------|------------|------------|
| Residential (Dollars Per Equivalent Unit) | \$6,665.81 |             |             | \$ 6,752.48 | \$1,601.60 | \$3,452.99 | \$6,752.48 | \$1,601.60 | \$6,752.48 |
| Commercial (Dollars Per Square ft.)       | 1.43       |             |             | 1.43        |            | \$1.43     | \$1.43     | \$1.43     | \$1.43     |
| Industrial (Dollars Per Square ft.)       | 0.55       |             |             | 0.55        |            | \$0.55     | \$0.55     | \$0.55     | \$0.55     |
| Existing City permitted Per Unit          |            | \$ 1,601.08 | \$ 1,601.08 |             |            |            |            |            |            |
| Sewer Connection (Per Connection)         |            | 839.27      | 839.27      |             |            |            |            |            |            |
| Sewer Reserve Blocks 4, 5, 7 (Per Unit)   |            | 175.94      |             |             |            |            |            |            |            |

**Waste-Water Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |                          |
| Fees                                             | \$ 7,070                 | \$ 12,445                | \$ 7,628                 | \$ 505,421               | \$ 309,682               |
| Investment Income                                | 11,560                   | 11,058                   | 2,969                    | 2,677                    | 13,763                   |
| Other*                                           |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>18,630</b>            | <b>23,503</b>            | <b>10,597</b>            | <b>508,098</b>           | <b>323,445</b>           |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |                          |
| Expenditures (1)                                 | 9,295                    | 24,873                   | 11,970                   | 220,516                  | 138,190                  |
| <b>Total Expenditures</b>                        | <b>9,295</b>             | <b>24,873</b>            | <b>11,970</b>            | <b>220,516</b>           | <b>138,190</b>           |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>9,335</b>             | <b>(1,370)</b>           | <b>(1,373)</b>           | <b>287,582</b>           | <b>185,255</b>           |
| Beginning Fund Balance                           | 744,684                  | 754,019                  | 752,649                  | 751,276                  | 1,038,859                |
| Adjustment to Beginning Balance                  |                          |                          |                          |                          |                          |
| Ending Fund Balance                              | 754,019                  | 752,649                  | 751,276                  | 1,038,859                | 1,224,114                |

**Five-Year Revenue Test Using First In First Out Method**

|                                                     |         |         |         |           |           |
|-----------------------------------------------------|---------|---------|---------|-----------|-----------|
| Available Revenue Current Year                      | 18,630  | 23,503  | 10,597  | 508,098   | 323,445   |
| Available Revenue Prior Year (2-yr Old Funds)       | 9,648   | 18,630  | 23,503  | 10,597    | 508,098   |
| Available Revenue Prior Year (3-yr Old Funds)       | 14,079  | 9,648   | 18,630  | 23,503    | 10,597    |
| Available Revenue Prior Year (4-yr Old Funds)       | 37,833  | 14,079  | 9,648   | 18,630    | 23,503    |
| Available Revenue Prior Year (5-yr Old Funds)       | 8,423   | 37,833  | 14,079  | 9,648     | 18,630    |
| Available Revenue Greater than 5 Prior Fiscal Years | 665,406 | 648,956 | 674,819 | 468,382   | 339,841   |
|                                                     | 754,019 | 752,649 | 751,276 | 1,038,859 | 1,224,114 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) SCADA Project in FY's 18/19, 19/20, 20/21. Council approved Development Impact Fee Incentive Program**

## Signalization Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for traffic facilities due to impacts of increased traffic as a result of new development.

### Fee Schedule

| Description                               | Zone 1   | Zone 1A   | Zone 1B  | Zone 2   | Zone 2A  | Zone 2B  | Zone 3   | Zone 3A  | Zone 4   |
|-------------------------------------------|----------|-----------|----------|----------|----------|----------|----------|----------|----------|
| Residential (Dollars Per Equivalent Unit) | \$256.87 |           |          | \$256.87 | \$150.55 | \$256.87 | \$256.87 | \$256.87 | \$256.87 |
| Commercial (Dollars Per Square ft.)       | 0.20     |           |          | \$0.20   |          | \$0.20   | \$0.20   | \$0.20   | \$0.20   |
| Industrial (Dollars Per Square ft.)       | 0.09     |           |          | \$0.09   |          | \$1.24   | \$0.09   | \$0.09   | \$0.09   |
| Interchange                               |          | \$ 943.99 | 943.27   |          |          |          |          |          |          |
| Signalization                             |          | 185.15    | \$185.15 |          |          |          |          |          |          |
| Avenue 17 Crossing                        |          | 435.16    | 435.17   |          |          |          |          |          |          |
| Avenue 26 Improvements                    |          | 564.47    | 564.47   |          |          |          |          |          |          |

**Signalization Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |                          |
| Fees                                             | \$ 1,044                 | \$ 799                   | \$ 4,102                 | \$ 31,147                | \$ 47,216                |
| Investment Income                                | 5,997                    | 5,932                    | 1,636                    | 1,210                    | 5,602                    |
| Other*                                           |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>7,042</b>             | <b>6,731</b>             | <b>5,738</b>             | <b>32,357</b>            | <b>52,818</b>            |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |                          |
| Expenditures (1)                                 |                          |                          |                          | 9,758                    | 21,646                   |
| <b>Total Expenditures</b>                        | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>9,758</b>             | <b>21,646</b>            |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>7,042</b>             | <b>6,731</b>             | <b>5,738</b>             | <b>22,599</b>            | <b>31,171</b>            |
| Beginning Fund Balance                           | 393,840                  | 400,882                  | 407,613                  | 413,351                  | 435,949                  |
| Ending Fund Balance                              | 400,882                  | 407,613                  | 413,351                  | 435,949                  | 467,121                  |

**Five-Year Revenue Test Using First In First Out Method**

|                                                     |         |         |         |         |         |
|-----------------------------------------------------|---------|---------|---------|---------|---------|
| Available Revenue Current Year                      | 7,042   | 6,731   | 5,738   | 32,357  | 52,818  |
| Available Revenue Prior Year (2-yr Old Funds)       | 6,267   | 7,042   | 6,731   | 5,738   | 32,357  |
| Available Revenue Prior Year (3-yr Old Funds)       | 3,068   | 6,267   | 7,042   | 6,731   | 5,738   |
| Available Revenue Prior Year (4-yr Old Funds)       | 6,414   | 3,068   | 6,267   | 7,042   | 6,731   |
| Available Revenue Prior Year (5-yr Old Funds)       | 3,055   | 6,414   | 3,068   | 6,267   | 7,042   |
| Available Revenue Greater than 5 Prior Fiscal Years | 375,036 | 378,091 | 384,505 | 377,815 | 362,436 |
|                                                     | 400,882 | 407,613 | 413,351 | 435,949 | 467,121 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

## Storm Drain Impact Development Fee Fund

**Purpose:** Purpose of this fee is to finance installation of public storm drainage and flood control facilities within the city boundaries to service needs of future development.

### Fee Schedule

| Description                               | Zone 1     | Zone 1A | Zone 1B | Zone 2     | Zone 2A  | Zone 2B    | Zone 3   | Zone 3A  | Zone 4   |
|-------------------------------------------|------------|---------|---------|------------|----------|------------|----------|----------|----------|
| Residential (Dollars Per Equivalent Unit) | \$1,587.29 | -       | -       | \$1,587.29 | \$962.78 | \$1,587.29 | 1587.29  | 1587.29  | 1566.92  |
| Commercial (Dollars Per Square ft.)       | 0.69       | -       | -       | 0.69       |          | \$0.69     | 0.69     | 0.69     | 0.69     |
|                                           | On-Site    |         |         | On-Site    |          | On-Site    | On-Site  | On-Site  | On-Site  |
| Industrial (Dollars Per Square ft.)       | Required   | -       | -       | Required   |          | Required   | Required | Required | Required |
| Storm Drainage Facilities Fee             |            | -       | -       |            | 661.88   | 661.88     |          |          |          |

**Storm Drain Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2017/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |
| Fees                                             | \$ 5,281                 | \$ 5,947                 | \$ 14,228                | \$ 114,591               |
| Investment Income                                | 11,219                   | 10,703                   | 2,921                    | 2,207                    |
| Other*                                           |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>16,500</b>            | <b>16,649</b>            | <b>17,149</b>            | <b>116,798</b>           |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |
| Expenditures (1)                                 | 9,295                    | 19,899                   | 9,576                    | 48,618                   |
| Transfer Out- Storm Drain                        |                          |                          |                          |                          |
| <b>Total Expenditures</b>                        | <b>9,295</b>             | <b>19,899</b>            | <b>9,576</b>             | <b>48,618</b>            |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>7,205</b>             | <b>(3,250)</b>           | <b>7,573</b>             | <b>68,181</b>            |
| Beginning Fund Balance                           | 722,963                  | 730,168                  | 726,919                  | 734,492                  |
| Ending Fund Balance                              | 730,168                  | 726,919                  | 734,492                  | 802,673                  |

| <b>Five-Year Revenue Test Using First In First Out Method</b> |         |         |         |         |
|---------------------------------------------------------------|---------|---------|---------|---------|
| Available Revenue Current Year                                | 7,205   | 16,649  | 17,149  | 116,798 |
| Available Revenue Prior Year (2-yr Old Funds)                 | 14,081  | 7,205   | 16,649  | 17,149  |
| Available Revenue Prior Year (3-yr Old Funds)                 | 18,127  | 14,081  | 7,205   | 16,649  |
| Available Revenue Prior Year (4-yr Old Funds)                 | 163,059 | 18,127  | 14,081  | 7,205   |
| Available Revenue Prior Year (5-yr Old Funds)                 | 121,417 | 163,059 | 18,127  | 14,081  |
| Available Revenue Greater than 5 Prior Fiscal Years           | 406,279 | 507,797 | 661,280 | 630,789 |
|                                                               | 730,168 | 726,919 | 734,492 | 802,673 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue  
**(1) Council approved Development Impact Fee Incentive Program**

## Streets & Roads Impact Development Fee Fund

**Purpose:** Purpose of this fee is to provide for traffic improvements necessary to accommodate increase in traffic generated by new development.

### Fee Schedule

| Description                               | Zone 1     | Zone 2     | Zone 2A   | Zone 2B   | Zone 3      | Zone 3A     | Zone 4      |
|-------------------------------------------|------------|------------|-----------|-----------|-------------|-------------|-------------|
| Residential (Dollars Per Equivalent Unit) | \$6,515.67 | \$4,447.94 | \$ 149.34 | \$ 642.11 | \$ 4,242.73 | \$ 4,242.73 | \$ 4,279.16 |
| Commercial (Dollars Per Square ft.)       | 2.19       | 1.48       |           | 1.41      | 1.41        | 1.41        | 1.41        |
| Industrial (Dollars Per Square ft.)       | 1.26       | 0.85       |           | 0.81      | 0.81        | 0.81        | 0.81        |

**Streets & Roads Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |                          |
| Fees                                             | \$ 14,338                | \$ 6,668                 | \$ 33,370                | \$ 491,495               | \$ 666,222               |
| Investment Income                                | 18,004                   | 17,962                   | 4,988                    | 4,145                    | 21,041                   |
| Other*                                           |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>32,342</b>            | <b>24,630</b>            | <b>38,358</b>            | <b>495,640</b>           | <b>687,263</b>           |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |                          |
| Expenditures (1)                                 |                          |                          |                          | 211,667                  | 315,869                  |
| <b>Total Expenditures</b>                        | <b>-</b>                 | <b>-</b>                 | <b>-</b>                 | <b>211,667</b>           | <b>315,869</b>           |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>32,342</b>            | <b>24,630</b>            | <b>38,358</b>            | <b>283,973</b>           | <b>371,394</b>           |
| Beginning Fund Balance                           | 1,180,393                | 1,212,735                | 1,237,365                | 1,275,723                | 1,559,696                |
| Ending Fund Balance                              | 1,212,735                | 1,237,365                | 1,275,723                | 1,559,696                | 1,931,090                |

**Five-Year Revenue Test Using First In First Out Method**

|                                                     |           |           |           |           |           |
|-----------------------------------------------------|-----------|-----------|-----------|-----------|-----------|
| Available Revenue Current Year                      | 32,342    | 24,630    | 38,358    | 495,640   | 687,263   |
| Available Revenue Prior Year (2-yr Old Funds)       | 43,457    | 32,342    | 24,630    | 38,358    | 495,640   |
| Available Revenue Prior Year (3-yr Old Funds)       | 11,147    | 43,457    | 32,342    | 24,630    | 38,358    |
| Available Revenue Prior Year (4-yr Old Funds)       | 37,001    | 11,147    | 43,457    | 32,342    | 24,630    |
| Available Revenue Prior Year (5-yr Old Funds)       | 6,049     | 37,001    | 11,147    | 43,457    | 32,342    |
| Available Revenue Greater than 5 Prior Fiscal Years | 1,082,739 | 1,088,788 | 1,125,789 | 925,269   | 652,857   |
|                                                     | 1,212,735 | 1,237,365 | 1,275,723 | 1,559,696 | 1,931,090 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

## Water Impact Development Fee Fund

**Purpose:** Purpose of this fee is to finance expansion of production, storage, transmission, treatment and distribution facilities to service new development.

### Fee Schedule

| Description                               | Zone 1     | Zone 1A     | Zone 1B     | Zone 2      | Zone 2A     | Zone 2B    | Zone 3     | Zone 3A     | Zone 4      |
|-------------------------------------------|------------|-------------|-------------|-------------|-------------|------------|------------|-------------|-------------|
| Residential (Dollars Per Equivalent Unit) | \$2,427.44 |             |             | \$ 2,458.99 | \$ 2,145.43 | \$2,458.99 | \$2,458.99 | \$ 2,458.99 | \$ 2,458.99 |
| Commercial (Dollars Per Square ft.)       | 0.55       |             |             | 0.50        |             | \$0.52     | \$0.52     | 0.52        | 0.52        |
| Industrial (Dollars Per Square ft.)       | 0.19       |             |             | 0.19        |             | \$0.19     | \$0.19     | 0.19        | 0.19        |
| Water Connection (Per Connection)         |            | \$ 1,242.76 | \$ 1,258.92 |             |             |            |            |             |             |
| Water Supply & Storage                    |            |             | 2,145.93    |             |             |            |            |             |             |

**Water Development Impact Fee Fund**  
*Statement of Revenues, Expenditures and Changes in Fund Balance*  
*Fiscal Year Ending June 30, 2023*

| Description                                      | Fiscal Year<br>2018/2019 | Fiscal Year<br>2019/2020 | Fiscal Year<br>2020/2021 | Fiscal Year<br>2021/2022 | Fiscal Year<br>2022/2023 |
|--------------------------------------------------|--------------------------|--------------------------|--------------------------|--------------------------|--------------------------|
| <b><u>Revenues</u></b>                           |                          |                          |                          |                          |                          |
| Fees                                             | \$ 8,692                 | \$ 7,709                 | \$ 10,219                | \$ 233,836               | \$ 130,913               |
| Investment Income                                | 3,817                    | 3,217                    | 706                      | 777                      | 4,326                    |
| Other*                                           |                          |                          |                          |                          |                          |
| <b>Total Revenues</b>                            | <b>12,509</b>            | <b>10,927</b>            | <b>10,925</b>            | <b>234,613</b>           | <b>135,239</b>           |
| <b><u>Expenditures</u></b>                       |                          |                          |                          |                          |                          |
| Expenditures (1)                                 | 4,647                    | 48,736                   | 23,454                   | 96,260                   | 49,507                   |
| <b>Total Expenditures</b>                        | <b>4,647</b>             | <b>48,736</b>            | <b>23,454</b>            | <b>96,260</b>            | <b>49,507</b>            |
| <b><u>Revenues Over/(Under) Expenditures</u></b> | <b>7,862</b>             | <b>(37,809)</b>          | <b>(12,529)</b>          | <b>138,352</b>           | <b>85,733</b>            |
| Beginning Fund Balance                           | 226,963                  | 234,825                  | 197,016                  | 184,487                  | 322,839                  |
| Ending Fund Balance                              | 234,825                  | 197,016                  | 184,487                  | 322,839                  | 408,572                  |

**Five-Year Revenue Test Using First In First Out Method**

|                                                     |         |         |         |         |         |
|-----------------------------------------------------|---------|---------|---------|---------|---------|
| Available Revenue Current Year                      | 12,509  | 10,927  | 10,925  | 234,613 | 135,239 |
| Available Revenue Prior Year (2-yr Old Funds)       | 3,230   | 12,509  | 10,927  | 10,925  | 234,613 |
| Available Revenue Prior Year (3-yr Old Funds)       | 12,259  | 3,230   | 12,509  | 10,927  | 10,925  |
| Available Revenue Prior Year (4-yr Old Funds)       | 18,799  | 12,259  | 3,230   | 12,509  | 10,927  |
| Available Revenue Prior Year (5-yr Old Funds)       | 7,286   | 18,799  | 12,259  | 3,230   | 12,509  |
| Available Revenue Greater than 5 Prior Fiscal Years | 180,742 | 139,292 | 134,637 | 50,636  | 4,359   |
|                                                     | 234,825 | 197,016 | 184,487 | 322,839 | 408,572 |

\*Other may include Prior Period Adjustments, Adjustments to beginning balances or Miscellaneous Revenue

**(1) Council approved Development Impact Fee Incentive Program**

# Notes to Development Impact Fee Report

|                            |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
|----------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Fire</b>                | Unspent fund balance indicates lack of growth as originally projected. Funds should remain in fund to support the anticipated future growth.                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>General Facilities</b>  | Public or General Facilities were developed with Bond Funds in support of future growth which was suppressed due to the recession. The negative balance is derived from the expansion of City Hall in which costs exceeded the amount of bond proceeds thereby generating a loan from the General Fund. Due to the lack of growth there has been insufficient fees collected to meet the loan repayment at this time. As future fees are collected the loan will be repaid. Future fees collected can then be used to pay for bond debt service new facilities. |
| <b>Parks</b>               | Unspent fund balance indicates lack of growth as originally projected. Funds should remain in fund to support the anticipated future growth.                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Public Safety</b>       | Unspent fund balance indicates lack of growth as originally projected. Funds should remain in fund to support the anticipated future growth.                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Waste-water</b>         | Unspent fund balance indicates lack of growth as originally projected. Projects are underway to boost and expand infrastructure required to service planned growth.                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Signalization</b>       | Unspent fund balance indicates lack of growth as originally projected. Funds should remain in fund to support the anticipated future growth.                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Storm Drain</b>         | Unspent fund balance indicates lack of growth as originally projected. Funds should remain in fund to support the anticipated future growth.                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>Streets &amp; Roads</b> | Unspent fund balance indicates lack of growth as originally projected. Projects are underway to boost and expand infrastructure required to service planned growth.                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>Water</b>               | Unspent fund balance indicates lack of growth as originally projected. Projects are underway to boost and expand infrastructure required to service planned growth.                                                                                                                                                                                                                                                                                                                                                                                             |

## Notes:

The City of Chowchilla realized new development within the City limits in the 21/22 FY. Although this is a positive move forward, the City continues to see moderate growth across all sectors. While the City experienced above average growth in the residential sector in Fiscal Year 21/22, current trends show the residential sector slowing to below average growth in Fiscal Year 22/23.